



Notification Waiver Determination

CVC Capital Partners - Ambrose Construct Group

Acquisition	CVC Capital Partners plc (together with its affiliates and subsidiaries, CVC), through Avoca Aus Bidco Pty Ltd, applied for a notification waiver in respect of its proposed acquisition of the entire issued shares of a holding company which indirectly controls Ambrose Construct Group (Ambrose), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 October 2026

Parties to the Acquisition	The acquirer, Avoca Aus Bidco Pty Ltd, is a special purpose vehicle who is indirectly controlled by funds or vehicles advised or managed by affiliates of CVC. CVC Capital Partners plc is a public limited company whose shares are listed on the Amsterdam Stock Exchange. The CVC Network is a global alternative investment manager focused on private equity, credit, infrastructure and secondaries, and includes CVC Capital Partners plc, each of its subsidiaries and the CVC Funds. The target, Ambrose, supplies insurance repairs and restoration services for insured property pursuant to insurance claims. Its services include business-as-usual repairs, escape of liquids specialist repairs, catastrophe event response, emergency 'makesafe' services, and property and contents restoration.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between CVC or its connected entities and Ambrose in the supply of insurance repairs and restoration services Australia - there is low risk of foreclosure or other concerning vertical effects arising from exclusionary conduct post-Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**